

11.	30-2025-01480831 Gutierrez vs. General Motors LLC	1. Motion for Summary Judgment and/or Adjudication 2. Trial Setting Conference Defendant General Motors, LLC (“Defendant”) moves for summary adjudication as to the first cause of action for declaratory relief, third cause of action for violation of the Song-Beverly Consumer Warranty Act express warranty, fourth cause of action for violation of the Song-Beverly Warranty Act implied warranty, fifth cause of action for violation of the Consumer Legal Remedies Act, sixth cause of action for violation of the Business and Professions Code, seventh cause of action for fraudulent misrepresentation, and eighth cause of action for negligent misrepresentation. Plaintiff Peter Gutierrez Jr. (“Plaintiff”) opposes the motion. As an initial matter, the Court notes that there are some notably deficiencies in the opposing papers. First, the opposing papers are not accompanied by a proof of service. Defendant, however, does not make any arguments regarding service. Second, the Declaration of Colin Welsh is not signed. Plaintiff <u>shall</u> submit a signed declaration before the hearing. If Plaintiff fails to file an admissible declaration, the Court will amend the analysis below and omit the consideration of the Welsh declaration and exhibit therein. In the analysis below, the Court considered the exhibit to the Welsh declaration. In addition, Plaintiff’s objections are OVERRULED. The burdens on summary judgment are as follows: “A defendant moving for summary judgment satisfies its burden by showing one or more elements of the cause of action in question cannot be established or there is a complete defense to that cause of action. If the defendant meets this initial burden, the opposing party must then make a prima facie showing of the existence of a triable issue of material fact. [Citation.] [¶] ... We strictly construe the moving party's affidavits and liberally construe the opposing party's affidavits. We accept as undisputed facts only those portions of the moving party's evidence that are not contradicted by the opposing party's evidence.” (<i>RND Contractors, Inc. v. Superior Court</i> (2025) 112 Cal.App.5th 697, 702, review denied (Oct. 15, 2025).) As explained below, the Court finds that Defendant has carried its burden to establish that there are no triable issues of fact as to one or more elements of each cause of action at issue in the motion. Plaintiff has not made a prima facie showing of the existence of a triable issue of material fact as to any of the causes of action at issue. I. CAUSES OF ACTION AT ISSUE A. Third Cause of Action for Violation of the Song-Beverly Consumer Warranty Act - Express Warranty Defendant argues that Plaintiff’s third cause of action for violation of the Song-Beverly Consumer Warranty Act - express warranty is barred pursuant to the holding in <i>Rodriguez v. FCA US, LLC</i> (2024) 17 Cal.5th 189. Defendant argues that the third cause of action fails because: (1) Plaintiff did not receive any new or additional warranty coverage from GM; when he bought the Silverado used from Hammer Toyota, he received only the unexpired balance of coverage remaining under the Warranty that GM issued when
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the vehicle was delivered new to the original owner, see Complaint ¶ 18; UMF ¶¶ 2, 6-7; Kay Decl. Ex. A; Jensen Decl. Ex. D, and (2) GM was not a party to Plaintiff’s purchase and Hammer Toyota is not an authorized GM dealership and therefore, cannot sell a GM certified pre-owned vehicle, see UMF ¶ 3; Jensen Decl. ¶¶ 4-5; Kay Decl. Exs. A and E.

The Court agrees.

The primary holding in *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189 is that “a motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a ‘motor vehicle sold with a manufacturer’s new car warranty’ under section 1793.22, subdivision (e)(2) ’s definition of ‘new motor vehicle’ unless the new car warranty was issued with the sale.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 196 [underline added].) The court held that “the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ — considered in the context of the surrounding text of section 1793.22, subdivision (e)(2) and in the broader context of the Song-Beverly Act’s provisions distinguishing between new and used goods — means a vehicle for which a manufacturer’s new car warranty is issued with the sale.” (*Id.*, at 206 [emphasis added].)

Thus, to be considered a new motor vehicle under the Act, a “new car” warranty must have been “*issued with the sale*” of the vehicle. (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [emphasis in original] and 199-200 [“the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ is most naturally understood to mean other vehicles for which such a warranty is issued with the sale. (§ 1793.22, subd. (e)(2).)”).

In issuing a “new car” warranty to a vehicle that is not technically new, “manufacturers (or their dealer-representatives) treat them as such upon sale by providing the same type of manufacturer’s warranty that accompany new cars.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [citing *Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 220, *aff’d* (2024) 17 Cal.5th 189].)

“For new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 202.) “In both cases, the Act’s protections are premised on an express warranty arising from the product’s sale.” (*Ibid.*)

Here, Defendant established that (1) Plaintiff did not receive any new or additional warranty coverage from GM; when he bought the Silverado used from Hammer Toyota, he received only the unexpired balance of coverage remaining under the Warranty that GM issued when the vehicle was delivered new to the original owner, see Complaint ¶ 18; UMF ¶¶ 2, 6-7; Kay Decl. Ex. A; Jensen Decl. Ex. D, and (2) GM was not a party to Plaintiff’s purchase and Hammer Toyota is not an authorized GM dealership and therefore, cannot sell a GM certified pre-owned vehicle, see UMF ¶ 3; Jensen Decl. ¶¶ 4-5; Kay Decl. Exs. A and E.

These facts are undisputed despite Plaintiff’s attempts to establish otherwise. Such undisputed facts bar Plaintiff’s third cause of action for violation of the Song-Beverly Consumer Warranty Act - express warranty. Defendant did not issue a new car warranty with the purchase of this vehicle. Defendant was not involved in the purchase of this used vehicle.

In opposition, Plaintiff submits Defendant’s “Special Coverage N242454441 Momentary Rear Wheel Lock-Up,” which was released in December of 2024 and appears to be a new warranty issued for the vehicle at issue. The Special Coverage states the following:

“Condition: Certain vehicles listed above, may have a condition where the transmission control valve has worn, resulting in a gradual loss of pressure within the valve. The effects can cause harsh shifting, setting a service engine soon message, reduced engine performance or P0747 diagnostic trouble code.

Special Coverage: This special coverage covers the condition described above for a period of 15 years or 150,000 miles (240,000km), whichever occurs first, from the date the vehicle was originally placed in service, regardless of ownership.

For vehicles covered by Vehicle Service Contracts, all eligible claims with repair orders on or after November 26, 2024, are covered by this special coverage and must be submitted using the labor operation codes provided with this bulletin. Claims with repair orders prior to November 26, 2024, must be submitted to the Service Contract provider.

Vehicle owners or lessees who paid for repairs referenced in this Special Coverage (“Customers”) are eligible for reimbursement of their reasonable and customary expenses in accordance with the procedures specified below. The conditional right to reimbursement is provided by GM solely in the interest of customer satisfaction and is personal to Customers. *Customers may not assign and GM does not consent to any assignment of any Customer’s right to submit reimbursement claims, or to receive reimbursement, or any other rights granted by this Special Coverage to any third party, including but not limited to service contract providers, and this Special Coverage is not intended to and does not confer any third party beneficiary, subrogation or contribution rights, or any other rights to reimbursement, against GM, whether in law, equity or otherwise, on any third parties.”*

This Special Coverage is not of consequence because it was not issued with the sale of the vehicle, which *Rodriguez* repeatedly holds is required to qualify as a new vehicle warranty. (See *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 202-203.) Likewise, the undisputed evidence shows that Defendant was not a party to the contract for the sale of the vehicle at issue and Defendant’s new car warranty was not issued with the sale of the vehicle.

Plaintiff attempts to exclude Defendant’s evidence that the vehicle was previously owned. However, as discussed above, the Court overruled Plaintiff’s objections to the Jensen Declaration and exhibits therein. Defendant’s “View Vehicle Summary” report is a business record that establishes prior ownership of the vehicle at issue. Plaintiff proffers no evidence that calls such ownership into question.

Given the above, the motion for summary adjudication is **GRANTED as to Plaintiff’s third cause of action** for violation of the Song-Beverly Consumer Warranty Act - express warranty.

B. Fourth Cause of Action for Violation of the Song-Beverly Warranty Act - Implied Warranty

Defendant argues that Plaintiff’s fourth cause of action for violation of the Song-Beverly Warranty Act - implied warranty is barred pursuant to the holding in *Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399 because “Plaintiff bought the Silverado used, and has “no evidence that [GM] was a distributor or retail seller of [the used Silverado] or in any way acted as such.”

The court in *Ruiz Nunez v. FCA US LLC* expressly held that “[i]t is evident from these [Song Beverly Act] provisions that only distributors or sellers of *used* goods—not manufacturers of *new* goods—

have implied warranty obligations in the sale of *used goods*.” (*Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399 [citing Civ. Code, § 1795.5].)

“As one court has put it, the Song-Beverly Act provides similar remedies (to those available when a manufacturer sells new consumer goods) ‘in the context of the sale of used goods, except that the manufacturer is generally off the hook.’ ” (*Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399 [citing *Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 339 (Song-Beverly Act “generally binds only distributors and retail sellers in the sale of used goods”)]). “[T]he assumption baked into section 1795.5 is that the manufacturer and the distributor/retailer are distinct entities.” (*Ibid.*) An exception arises “[w]here the manufacturer sells directly to the public . . . [and] takes on the role of a retailer.’ ” (*Ibid.*)

Here, Plaintiff did not buy the used vehicle from GM and GM was not party to the transaction for the purchase of the vehicle at issue. Rather, the vehicle was purchased from Hamer Toyota, which is not an authorized GM dealership and cannot sell a certified pre-owned GM vehicle. Case law expressly establishes that only distributors or sellers of used goods have implied warranty obligations in the sale of a used good. GM did not sell the vehicle to Plaintiff.

The Motion for Summary Adjudication as to the **fourth cause of action** for violation of the Song-Beverly Warranty Act - implied warranty is **GRANTED**.

C. Fifth Cause of Action for Violation of the Consumer Legal Remedies Act

Plaintiff brings in fifth cause of action for violation of the Consumer Legal Remedies Act pursuant to Civil Code section 1170(a). Section 1170(a) states:

“The unfair methods of competition and unfair or deceptive acts or practices listed in this subdivision undertaken by any person in a transaction intended to result or that results in the sale or lease of goods or services to any consumer are unlawful.” (Civ. Code, § 1770, subd. (a).)

Here, Defendant has established that it was not a person in the transaction of the motor vehicle at issue and Defendant did not give Plaintiff a warranty for the motor vehicle at issue with the sale of the vehicle. The contract for the used motor vehicle was between Plaintiff and Hamer Toyota.

The motion for summary adjudication as to the **fifth cause of action** for violation of the Consumer Legal Remedies Act is **GRANTED**.

B. Sixth Cause of Action for Violation of the Business and Professions Code

Plaintiff’s sixth cause of action is for violation of the Business and Professions Code.

“As used in this chapter, unfair competition shall mean and include any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising and any act prohibited by Chapter 1 (commencing with Section 17500) of Part 3 of Division 7 of the Business and Professions Code.” (Bus. & Prof. Code, § 17200.)

“California courts have consistently interpreted the language of section 17200 broadly.” (*Community Assisting Recovery, Inc. v. Aegis Security Ins. Co.* (2001) 92 Cal.App.4th 886, 891.) “It is not necessary to show that the defendant intended to injure anyone.” (*Ibid.*)

“A business practice is unfair within the meaning of the UCL if it violates established public policy or if it is immoral, unethical, oppressive or unscrupulous and causes injury to consumers which outweighs its benefits.” (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1473.) “The determination whether a business practice is unfair involves an examination of [that practice’s] impact on its alleged victim, balanced against the reasons, justifications and motives of the alleged wrongdoer.” (*Ibid.*) “In brief, the court must weigh the utility of the defendant’s conduct against the gravity of the harm to the alleged victim.” (*Ibid.*)

“To bring a UCL claim, a plaintiff must show either an (1) unlawful, unfair, or fraudulent business act or practice, or (2) unfair, deceptive, untrue or misleading advertising.” (*Adhav v. Midway Rent A Car, Inc.* (2019) 37 Cal.App.5th 954, 970.) “Because the UCL is written in the disjunctive, it establishes three varieties of unfair competition—acts or practices which are unlawful, or unfair, or fraudulent.” (*Ibid.*)

As discussed under the other causes of action, Plaintiff has not established that Defendant has participated in any unlawful, or unfair, or fraudulent practices with regards to this transaction. Defendant was not a party to the transaction.

The motion for summary adjudication as to the **sixth cause of action** is for violation of the Business and Professions Code is **GRANTED**.

C. Seventh Cause of Action for Fraudulent Misrepresentation

“To establish a claim for fraudulent misrepresentation, the plaintiff must prove: ‘(1) the defendant represented to the plaintiff that an important fact was true; (2) that representation was false; (3) the defendant knew that the representation was false when the defendant made it, or the defendant made the representation recklessly and without regard for its truth; (4) the defendant intended that the plaintiff rely on the representation; (5) the plaintiff reasonably relied on the representation; (6) the plaintiff was harmed; and (7) the plaintiff’s reliance on the defendant’s representation was a substantial factor in causing that harm to the plaintiff.’” (*Graham v. Bank of America, N.A.* (2014) 226 Cal.App.4th 594, 605–606.)

Plaintiff alleges the following in support of his fraudulent misrepresentation cause of action against Defendant:

“Before and at the time of the transactions, GM and potentially others unknown at this time concealed and/or omitted material facts from Plaintiff, including, but not limited to: (1) misrepresenting the terms of its express warranties; (2) misrepresenting that it would honor the warranties; misrepresenting that it was required to agree with its dealership’s determinations; (3) misrepresenting that it has no control over its dealership; and (4) inserting unconscionable terms into the purchase documents.” (Complaint, ¶ 140.)

As established above, Defendant was not a party to the transaction for the purchase of the vehicle. Therefore, Defendant did not “insert unconscionable terms into the purchase documents” or make any representations with the intention that Plaintiff rely on those representation in order to cause Plaintiff to purchase the vehicle at issue.

The Court notes that Defendant argues it is entitled to summary judgment because there is not fiduciary relationship between Plaintiff and Defendant. While a fiduciary relationship is not an element to this cause of action (or the eighth cause of action for negligent misrepresentation), the

Court finds summary adjudication appropriate for this cause of action based on the undisputed facts disused above.

The motion for summary adjudication as to the **seventh cause of action** for fraudulent misrepresentation is **GRANTED**.

D. Eighth Cause of Action for Negligent Misrepresentation

“The elements of negligent misrepresentation are (1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another’s reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.” (*Apollo Capital Fund, LLC v. Roth Capital Partners, LLC* (2007) 158 Cal.App.4th 226, 243.)

For the same reasons discussed above, the motion for summary adjudication as to **the eighth cause of action** for negligent misrepresentation is **GRANTED**.

E. First Cause of Action for Declaratory Relief

“A complaint for declaratory relief is legally sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the respective parties under a written instrument and requests that these rights and duties be adjudged by the court.” (*Leonard Carder, LLP v. Patten, Faith & Sandford* (2010) 189 Cal.App.4th 92, 97.)

“Declaratory relief is available to ‘[a]ny person interested under a written instrument ... who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property ... in cases of actual controversy relating to the legal rights and duties of the respective parties’ ” (*Camden Systems, LLC v. 409 North Camden, LLC* (2024) 103 Cal.App.5th 1068, 1078–1079, *reh'g denied* (Aug. 8, 2024) [citing Code Civ. Proc., § 1060].) “Declaratory relief pursuant to this section has frequently been used as a means of settling controversies between parties to a contract regarding the nature of their contractual rights and obligations.” (*Id.*, 1079.)

As established above, there is no actual controversy between Plaintiff and Defendant because Defendant was not a party to the transaction for the purchase of the vehicle. As such, the motion for summary adjudication as to the **first cause of action** for declaratory relief is **GRANTED**.

Defendant to give notice.